

26STLC03279 26STLC03279

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Case Number: 26STLC03279 Hearing Date: August 6, 2026 Dept: 26

TENTATIVE

RULING:

Defendant Goldie Nwachuku's Demurrer to the
Complaint is sustained without leave to amend.

Analysis:

Plaintiff Best Solar 4 Less Inc. dba Eco Home Builders ("Plaintiff"),
in propria persona, filed the instant action against Defendant Goldie Nwachuku (erroneously sued as "Goldie
Wanchuku") ("Defendant") on May 14, 2026. On July 6, 2026, Defendant filed and served the instant Demurrer to the
Complaint. Defendant served Plaintiff with the Demurrer on the same day by
electronic mail and first-class mail. No opposition has been filed to date.

Discussion

Initially, the Court notes that
the Complaint was filed by Victor Mendieta on behalf of the business entity
"Best Solar 4 Less Inc. dba Eco Home Builders." (Compl., p. 1.) It is black
letter law that a corporation cannot represent itself in court. (Clean Air
Transport Systems v. San Mateo County Transit Dist. (1988) 198 Cal.App.3d
576, 578 (citing Merco Constr. Engineers, Inc. v. Municipal Court (1978)
21 Cal.3d 724, 729-730).) This rule applies to all entities regarded as
separate from their owners, including partnerships and unincorporated
associations. (See Clean Air Transport Systems, supra, 19 Cal.App.3d at
578.) Plaintiff must appear through a licensed attorney if it intends to proceed
with this action.

The Demurrer is accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41. (Demurrer, Anyia Decl., ¶2.) Defendant demurs to the Complaint for failure to allege sufficient facts, uncertainty, and failure to allege facts showing whether the contract is written, verbal, or implied. (Demurrer, p. 2:6-11.) Special demurrers, however, are not permitted in the Limit Civil Court. (Code Civ. Proc., § 92, subd. (c).) Therefore, the Court will not consider the Demurrer for uncertainty or for failure to allege facts showing whether the contract is written, oral, or implied.

Regarding whether the Complaint fails to allege sufficient facts in support of the purported causes of action for breach of contract, common counts, foreclosure of mechanic's lien, quantum meruit, and unjust enrichment, Defendant demurs on the basis that no causes of action are attached in support of the Complaint, and as a such, it fails to allege the elements of any of the named causes of action. Regardless of whether a cause of action is attached or not to a Judicial Council form complaint, "a reviewing court must examine the particular allegations in the form pleading and determine whether those allegations satisfy the pleading requirements established by California law." (Esparza v. Kaweah Delta Dist. Hospital (2016) 3 Cal.App.5th 547, 555.) In People ex rel. Dept. of Transportation v. Superior Court (1992) 5 Cal.App.4th 1480, the Court of Appeals ruled that

checking a box on a Judicial Council complaint form was insufficient to comply with the general requirement that a complaint state facts constituting cause of action. (People ex rel. Dept. of Transportation v. Superior Court (1992) 5 Cal.App.4th 1480, 1484.) "[I]n order to be demurrer-proof, a form 'complaint must contain whatever ultimate facts are essential to state a cause of action under existing statutes or case law.'" (Ibid.)

Plaintiff's Complaint attaches no causes of action. (Compl., ¶8.) Instead, it alleges a few sentences with respect to all the named causes of action, as follows: "Plaintiff performed construction labor, services, and furnished materials for improvements to defendant's property. Defendant failed to pay the remaining balance owed. Plaintiff recorded a Mechanics Lien against the subject property." (Id. at ¶9.) Plaintiff then seeks damages of \$23,100.00. (Id. at ¶10.) It also attaches a variety of exhibits including "Contract, Approved Plans, and Permit Documents," "Recorded Mechanic's Lien," "Approved Change Order," "Proof

of Payments Received,” photographs, and communications. However, none of the attached exhibits are explained in the alleged facts or even referenced. Evidentiary facts “found in recitals of exhibits attached to a complaint or superseded complaint [] can be considered on demurrer,” but the exhibits must be incorporated by reference. (See *Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) Therefore, the Court cannot consider the exhibits attached to the Complaint for purposes of the instant Demurrer.

A cause of action for breach of contract must allege (1) the existence of the contract; (2) Plaintiff's performance of the contract; (3) defendant's breach of the contract; and (4) the resulting damages to the Plaintiff. (*Lortz v. Connell* (1969) 273 Cal.App.2d 286, 290.) The Complaint does not allege the existence of a contract. It simply alleges that Plaintiff performed work and furnished materials to Defendant's property. Nor is there an allegation of Plaintiff's performance of obligations under a contract. The allegation of labor performed and materials furnished is unconnected to any agreement. Likewise, the allegation of Defendant's failure to pay “remaining balance owed” or the amount of Plaintiff's damages cannot be linked to any agreement between the parties. The Demurrer to the first cause of action for breach of contract is sustained.

The elements for a cause of action for foreclosure of a mechanic's lien, set forth at Civil Code section 8400 to 8848, are (1) entitlement to a lien; (2) proper service of preliminary notice; (3) timely recordation of the claim of lien; and (4) timely filing of the foreclosure action. Only the first element is potentially alleged in the Complaint; no facts regarding the remaining elements are present. The Demurrer to the third cause of action for foreclosure of mechanic's lien is sustained.

Although the common count in the Complaint is not named, a claim for goods and services rendered must allege (1) the plaintiff provided goods or services; (2) at the request of, or for the benefit of, the defendant; and (3) the reasonable value of those goods or services has not been paid. (CACI 371.) A cause of action for quantum meruit similarly must allege the reasonable value of the benefit provided. (*Pacific Bay Recovery, Inc. v. California Physicians' Services, Inc.* (2017) 12 Cal.App.5th 200, 214.) The Complaint does not allege the reasonable value of the goods or services rendered by Plaintiff for Defendant's benefit. Moreover, “[w]hen a common count is used as an alternative way of seeking the same recovery demanded in a specific cause of action, and is based on the same facts, the

common count is demurrable if the cause of action is demurrable.” (See *McBride v. Boughton* (2004) 123 Cal. App. 4th 379, 394 (“McBride’s common count must stand or fall with his first cause of action, and we therefore uphold its dismissal for the same reasons.”) So here. The Demurrer to the second and fourth causes of action is sustained.

Finally, for unjust enrichment, Plaintiff must allege “receipt of a benefit and unjust retention of the benefit at the expense of another.” (*Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc.* (2018) 29 Cal.App.5th 230, 238.) No ultimate facts are alleged that Defendant’s retention of the labor performed and materials furnished is unjust because, as recited above, no information is provided regarding what labor was performed or what materials were furnished. The allegation that Defendant owed Plaintiff a certain amount is a legal conclusion unsupported by any ultimate facts regarding why that amount was owed. Therefore, the Demurrer to the fifth cause of action is also sustained.

Nor has Plaintiff filed any opposition to demonstrate on what basis leave to amend might be granted. As the pleading party, Plaintiff bears the burden to demonstrate that leave to amend should be granted, which must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) Therefore, leave to amend is denied.

Conclusion

Defendant Goldie Nwachuku’s Demurrer to the Complaint is sustained without leave to amend.

Moving party to give notice.